Connecticut Appellate Court

PETITION FOR EXPEDITED REVIEW OF ORDER LIMITING ACCESS TO COURT FILINGS, CONN. GEN. STAT. § 51-164x AND PRACTICE BOOK § 77-1

Dan Barrett
Elana Bildner
ACLU Foundation of Connecticut
765 Asylum Avenue
Hartford, CT 06105
(860) 471-8471
e-filings@acluct.org

1. Relevant facts of the records access dispute.

In March 2018, Connecticut Department of Correction employees physically subdued J'Allen Jones at the Garner Correctional Institution, resulting in his death. The state's medical examiner attributed Mr. Jones's death to homicide. The entire sequence of events in Mr. Jones's death was videorecorded by the employees and retained by the Department of Correction. Mr. Jones's estate (and the estate's fiduciary, individually) sued the correctional employees who they alleged to be responsible for his death, contending that their actions and inactions contravened Connecticut tort law and the United States Constitution. Revised Complaint [# 103.00], *Richardson v. Semple*, No. HHD-CV18-6098918-S (Conn. Super. Ct. Nov. 15, 2018).

In October 2019, the defendants and plaintiffs moved for entry of a stipulated protective order (Superior Court docket entry # 115.00, hereinafter "Joint Motion") that the Superior Court so-ordered two weeks later (# 115.86) in a one-word decision. The protective order solely governed "the use of Department of Correction (DOC) videotape recordings . . . during the litigation of" *Richardson v. Semple* by any party to the dispute or its counsel. Joint Motion 1. The order did not address the sealing of any court filing other than to state that:

> Before submitting the video/DVD recordings that [are] subject to this Protective Order with the Court and/or moving for their introduction into evidence, both parties will jointly request that the video/DVD recordings will be filed under seal.

Id 3. In March 2024, following discovery and motion practice, nine of the defendants filed a motion for summary judgment accompanied by a memorandum [Superior Court docket entry # 192.000, hereinafter "Defendants' Memo"]. The memorandum has ten exhibits, lettered A through J. According to the memorandum, Exhibit A is a "[v]ideo to be provided to court pursuant to [a] protective order." In the defendants' own words, Exhibit A "record[s] the entirety of the event giving rise to the claims in this action," and they rely on it to provide "the undisputed facts" supporting their motion for judgment. Def.'s Memo 2. The defendants' arguments in favor of summary judgment rely almost exclusively on the video. They cite to the video approximately forty-eight times in the forty-nine page memo, characterizing the video's contents and Mr. Jones's actions in it, and ask the Superior Court to grant them summary judgment on the basis of those characterizations. See, e.g., Defs.' Memo 10 (arguing that one of the defendants called for medical help "throughout the video"), 15 (arguing that "the video shows not indifference but active monitoring"), 17 (presenting the defendants' detailed view of when Mr. Jones's medical distress began), 18 (contending that, despite being minutes from his death, Mr. Jones was "still capable of moving, shouting, and yelling"), 19 (characterizing the video as depicting a "chaotic, evolving scene").

On September 27, 2024, the ACLU of Connecticut verified that the public docket in *Richardson* shows no motion to seal any filing, and no order sealing any filing. That same day, it requested a copy of the video.

After initially concurring that there was no reason not to produce a copy of the video, the Superior Court clerk's office conveyed that it would confer with the judge presiding over *Richardson*. On October 4th, the presiding judge of the Hartford judicial district denied the ACLU's request on the basis that the video "is under seal pursuant to a protective order issued by the court on November 13, 2019." The presiding judge noted that the *Richardson* plaintiffs had obtained a briefing schedule on the question of modifying the protective order, and conveyed that the ACLU's request would be denied "[u]nless and until such time as the protective order is vacated or modified." Letter from Hon. Lisa Morgan to Grace Sinnott, Oct. 4, 2024.

The presiding judge's denial of the ACLU's request is the decision "limit[ing] the disclosure of any . . . material on file with the court" from which it now appeals. Conn. Gen. Stat. § 51-164x(c). Accord Practice Book § 77-1(a).

2. The video has never been sealed, could not be sealed, and must be furnished to the ACLU.

2.1. Protective orders do not govern the public's access to court records.

Protective orders are one of the means by which the superior court supervises the discovery process, which proceeds exclusively "in accordance with the provisions of" chapter 13 of the Practice Book, and without which litigants have no access to each other's information. A protective order may set the terms by which—if at all—a party "from whom discovery is sought" is required to furnish that information, ranging from not at all (an order "that the discovery not be had") to conditions limiting "the scope of the discovery . . . to certain matters." Practice Book § 13-5. They are predicated on an information holder's interest in the information in dispute, and on the use the seeker of the information wishes to put it to during the litigation, weighed against whether "good cause shown" counsels the limits. Id. Protective orders do not govern strangers to a litigation who neither seek information from a litigant nor are faced with a demand to furnish information to one.

2.2. Once information leaves the realm of discovery between parties and is filed with a court, strong standards tightly restrict limits on public access to that information.

Because "pretrial depositions and interrogatories are not public components of a civil trial," protective orders raise few constitutional concerns about their functioning as "a restriction on a traditionally public source of information." *Seattle Times Co. v. Rhinehart*, 467 U.S. 20, 33 (1984). In contrast, once a piece of information crosses over from discovery between litigants into a filing submitted to a court, strong state and federal protections apply because court filings are a vital source of public information. See, e.g., *Bank of Am. Nat'l Trust & Savings Ass'n v. Hotel Rittenhouse Assocs.*, 800 F.2d 339, 343 (3d Cir. 1986)

(explaining that discovery between parties "stands on a different footing than does a motion filed by a party seeking action by the court.").

Our Practice Book codifies the common law right of records access, *Rosado v. Bridgeport Roman Catholic Diocesan Corp.*, 292 Conn. 1, 30 (2009), mandating that "there shall be a presumption that documents filed with the court shall be available to the public," and that the Superior Court "shall not order that any . . . materials on file with the court or filed in connection with a court proceeding be sealed or their disclosure limited." Practice Book §§ 11-20A(a),(b). The presumption attaches to all "judicial documents," that is, any "submitted to the court for its review in the discharge of the court's adjudicatory function." *Rosado v. Bridgeport Roman Catholic Diocesan Corp.*, 276 Conn. 168, 217 (2005).

Federal law contains a twin public access presumption. The First Amendment to the national constitution protects the public's access to court filings as a corollary to its right to attend court proceedings. E.g., *Hartford Courant Co. v. Pellegrino*, 380 F.3d 83, 93 (2d Cir. 2004). See *Martinez v. Empire Fire & Marine Ins. Co.*, 322 Conn. 47, 62 (2016) (explaining that the Connecticut courts, "[w]hen addressing questions of federal law . . . give special consideration to the decisions of the Second Circuit"). The First Amendment right of public access attaches to "judicial documents," that is, things filed with a court that are "relevant to the performance of the judicial function and useful in the judicial process." *United States v. Amodeo*, 44 F.3d 141, 145 (2d Cir. 1995).

Any order or decision to seal a court filing—that is, restrict it from public view—must clear the twin hurdles of the Practice Book and First Amendment. The former requires that a party seeking sealing of a court filing prove that sealing is warranted. *Vargas v. Doe*, 96 Conn. App. 399, 411-12 (2006). A court may not grant sealing unless it "concludes that such order is necessary to preserve an interest which is determined to override the public's interest in viewing such materials" after first considering "reasonable alternatives to sealing." Practice Book § 11-20A(c). Any order sealing a judicial document "shall be no broader than necessary to protect such overriding interest." Id. § 11-20A(e). The First Amendment, meanwhile, forbids sealing unless the court makes "specific, on the record findings . . . demonstrating that closure is essential to preserve higher values and is narrowly tailored to serve that interest." *Lugosch v. Pyramid Co. of Onondaga*, 435 F.3d 110, 120 (2d Cir. 2006). "Broad and general findings" will not suffice to support sealing. *In re New York Times Co.*, 828 F.2d 110, 116 (2d Cir. 1987).

2.3. The video exhibit to the defendants' motion for summary judgment has never been sealed.

No party has moved to seal the video, and the Superior Court has never issued an order sealing it, meaning that the public's access to the video is entirely unimpaired and should be immediately produced. The presiding judge's denial decision concluded that the protective order in the case sealed the video, but it did not.

Firstly, the protective order simply required any litigation party who files the video with the court to ask that it be sealed, which none of them did. Secondly, the Superior Court is forbidden from sealing filings on litigants' say-so. Practice Book § 11-20A(c) ("An agreement of the parties to . . . limit the disclosure of documents on file with the court . . . shall not constitute a sufficient basis for the issuance of such an order."); *Travelers Indem. Co. v. Excalibur Reinsurance Corp.*, No. 3:11-CV-1209, 2013 WL 4012772, at *11 (D. Conn. Aug. 5, 2013) (explaining that the First Amendment mandates that, "[e]ven if the parties were able to agree as to which materials should be deemed 'confidential,' in order to seal, it remains incumbent on the Court to make" findings and consider narrow tailoring).

Lastly, orders and decisions restricting public access to court records may not rely on unstated premises or implied conclusions. Any decision barring access "shall articulate the overriding interest being protected and shall specify its findings underlying such order and the duration of such order," including by issuing "[t]he time, date, scope and duration of any such order . . . in a writing." Practice Book § 11-20A(d). See also *Lugosch*, 435 F.3d at 120 (holding that the First Amendment requires every sealing order to set out "specific, on the record findings . . . demonstrating that closure is essential to preserve higher values and is narrowly tailored to serve that interest."). The protective order relied upon by the presiding judge neither considered nor adjudicated any of the Practice Book or First Amendment requirements, and so was never a valid sealing order.

2.4. The video cannot be sealed.

Finally, the video that the ACLU seeks cannot have been sealed, even on the merits, because the strong public interest in access that attaches to it cannot be overcome.

The video is a document to which the Practice Book and First Amendment protections unquestionably apply. In the former's terms, the video is a

"document[] filed with the court," Practice Book § 11-20A(a), that the Superior Court "shall not order" restricted absent compelling reasons. Id. §§ 11-20A(b),(c). In the latter's, it is a document "relevant to the performance of the judicial function and useful in the judicial process," *United States v. Amodeo*, 44 F.3d 141, 145 (2d Cir. 1995), and as a summary judgment exhibit, it "should not remain under seal absent the most compelling reasons." *Joy v. North*, 692 F.2d 880, 893 (2d Cir. 1982) (reversing sealing order and applying its rule to "documents used by parties moving for, or opposing, summary judgment").

The weight that the defendants place upon the video in their summary judgment papers renders the item practically impossible to seal. It is the sole piece of evidence on which they rely for the bulk of their legal arguments, and a decision in their favor would necessarily rest upon the Superior Court's interpretation of the video's contents. That type of evidence requires the public to have access to assess for itself both the behavior of its public employees at the Department of Correction, and the performance of its courts. E.g., *Nixon v. Warner Commc'ns, Inc.*, 435 U.S. 589, 598 (1978).

3. Conclusion

Because the video has never been and cannot be sealed, this Court should vacate the order of the Superior Court and remand with directions that it produce the video to the ACLU.

By: _____

Dan Barrett (# 437438)
Elana Bildner
ACLU Foundation of Connecticut
765 Asylum Avenue
Hartford, CT 06105
(860) 471-8471
e-filings@acluct.org

Certifications

In conformance with Practice Book § 62-7, I certify that this brief (and any appendix) complies with the applicable rules of Connecticut appellate procedure, that any copy filed with the appellate clerk is a true copy of the one filed

electronically, that it does not contain any names or other personal identifying information prohibited from disclosure by law, and that it has been transmitted to the following as of the date of this certification (including to the last known email address of each person or entity for whom an email address has been provided):

Paul Spinella
Ron Murphy
attorneys@spinella-law.com
Murphy@AdvocatesLawFirm.com
Counsel for the plaintiffs

Terrence O'Neill
James Belforti
Janelle Medeiros
David Yale
Terrence.Oneill@ct.gov
James.Belforti@ct.gov
Janelle.Medeiros@ct.gov
David.Yale@ct.gov
Counsel for the defendants

Hon. Claudia Baio
claudia.baio@jud.ct.gov
Presiding judge, Richardson v. Semple

October 7, 2024

By: _____
Dan Barrett